Opportunity for Rebuttal

IHS-MI-PHX-2023-0005

Kevin Turnage, Aggrieved

INVESTIGATED INCIDENTS:

Whether Aggrieved was subjected to harassment when:

Incident 1: Candace Lee threatened that if Aggrieved grieved his PMAP rating, she would give him a PA(2).

Incident 2: Candace Lee created a Quid-Pro-Quo situation ever since Aggrieved rebuffed her and objected to the physical/sexual conduct when she started hugging him in his office back in November 2022, and then gave him a card telling him "I still don't regret that hug!"

Check one:

[X] **I, Kevin Turnage, have chosen to provide the following rebuttals. See rebuttals below.**

[ ] **I, Kevin Turnage, have chosen to NOT provide a rebuttal to these affidavits.**

<u>Rebuttal of Statement for Management Official(s):</u>

Candace Lee:

Page 1 Q1-Q4: Accepted

~~Page 2 Q5-Q7 Accepted~~

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Page 2 Incident 1 #1 She is stating that she signed the PMAP without reviewing and HHS Instruction specifically states "Reviewing Official: The Reviewing Official *has review and approval authority* above the Rating Official and is ordinarily two supervisory levels above the employee." She should have initially caught the error on review and/or assigned when we met on 03/02/2023 instead of threatening me that if I grieved the rating she would give me a lower rating.

Page 2 Incident 1 #3 The PMAP was emailed on February 23, 2023

Page 3 Incident 1 #6 I grieved this to Brandi Benjamin my direct supervisor before I met with Ms. Lee and she stated I should talk to Ms. Lee. HHS Instruction 430-1-40 F 4 states "Upon request, provide a second-level review of a summary rating and either change or concur with the rating." Following the meeting with Ms. Lee I grieved it with Debra Ward Lund and received the email response "Good Afternoon,

I agree that under 7-5.5 B. (3) of the Administrative Grievance System for performance appraisal grievances, the official who gave final approval to the summary rating is the Stage 1 Official. However, as you have been informed, and based on your allegation, I have contacted the EEO office to investigate your concerns raised in your email of March 3, 2023. Therefore, the reviewing official is unavailable to address your administrative grievance as contemplated under 7-5-.5 B. (3).

The Administrative Grievance System procedure does not specifically address who would be the Stage 1 Official in the absence of the availability of the official who gave final approval to the summary rating. Absent a provision providing guidance on this specific fact pattern, I am

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defaulting to the procedure found in 7-5-.5 B. (1) of the Administrative Grievance System that states, "the Stage 1 official is the first official within the organization who has authority over the matter being grieved. This is the official who made the decision or took the action about which the employee is dissatisfied."

You did not provide a cite to any authority for me to consider that supports your argument that the Stage 1 Official should be another member of leadership which is a leadership level above the PMAP rating official. Additionally, the provisions of the Administrative Grievance System specifically make references that the Stage 1 Official is an official who was involved in the decision about which the employee is dissatisfied.

Mr. Jason White will be the Stage 1 Official to address your administrative grievance submitted to management on March 3, 2023. "

However Ward Lund misstates 7-5-5 B since (3) specifically states "Performance Appraisal Grievances. For performance appraisal grievances, the official who gave final approval to the summary rating is the Stage 1 Official." With the official giving final approval to the summary rating being the reviewing official by standard then Mr. White should not have been the step 1 official since the reviewing official gave final approval to the summary rating and that is who threatened to lower my rating Ms. Lee.

Page 3 Incident 1 # 11 this is a completely dishonest and fabricated statement since she stated when talking about the overall rating when she said " It has been a rough year for all of us and a Meets Expecations is better than a 2 which is what I will give you if you greive it." At which time I said I see and stated I guess we have nothing further to discuss and left the office.

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Page 4 Incident 1 #13 This response is dishonest on its face as she did threaten to give me a 2 and she stated "I recognized we had made an error in not providing a rating in an element." She did not make that realization I pointed it out to her and as the rating official she had the authority to fix the error and re-rate at that moment instead she threatened me and the agency not only rated that elemented but re-wrote the entire narrative removing some of my accomplishments and rerated all elements changing all element ratings.

Page 4 Incident 2 #14 The first time she hugged me was at the end of September / first of October 2022 and I did tell her not to hug me. It is a blatant misrepresentation of the facts to state she asked for permission to hug me and I agreed as she did not ask and I would not have agreed as that level of intimacy is reserved for my family and close friends not my co-workers.

Page 4 Incident 2 #15 She did not ask my permission to hug me and if she had I would rejected her.

Page 4 Incident 2 #16 She admits to hugging me and then in #17 she states "I do not think I had hugged him before or after that but can't say for certain" She admits to once and can supposedly remember the details but cannot remember "for certain" if she hugged me before or not and whether I told her it made me uncomfortable which she denies in #18. The responses for #16-18 are vague and evasive to prevent admitting to her wrong doing.

Page 4 Incident 2 #19 It is noted that she admits to hugging other employees but only provides the names of female employees which is totally different then hugging a married male. This conduct has interfered with me being able to perform my job because of fear of additional unwanted contact.

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Page 5 Incident 2 #20 When did this occur and where are the statements from these individuals cooborating this statement? Even if such a comment was made then those supervisors had a responsibility to report the sexual harassment against me by Ms. Lee. This only confirms that she hugged me not that it was unwelcomed and others were informed of the behavior.

Page 5 Incident 2 #21 I did tell Ms. Lee it made me uncomfortable. This unwelcome conduct created a work environment that is hostile, intimidating, and offensive. By not submitting to advances or requests it is being used as the basis for a negative personnel decisions, specifically performance rating, removal from property and detail to another position out of my position of record. This harassment was pervasive in the form of Ms. Lee verbally almost everytime we spoke and in writing when she would state "I still don't regret that hug" and calls them inside jokes, when in reality it was pervasive constant remarks in which Ms. Lee was reminding me that she can do what she wants and there is nothing I can do about it.

Page 5 General Harassment Questions

1 This is a falsification and untruthful as I verbally told her twice.

#2 No argument with this response as I have no knowledge if any claims against Ms. Lee substantiated or unsubstaintiated.

#3 Ms. Lee admits to hugs and "inside jokes" an inside joke to her. It made me feel the need to compromise my morals to retain my position. I worried she would hold it against me because wants someone who knows how to be a team player. When I did address it exactly what I feared ~~would occurred happened on the same day I escalated my concerns to EEO at headquarters and~~ Director Tso.

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#4 It is unfathomable that the Chief Nursing Officer who by her own admission in this affidavit oversees all nurses, nursing practice and clinical support staff is not involved or aware of an alleged serious offense that amazingly and surprisingly only allegedly occurred after my complaint was escalated to headquarters approximately 2 hours after my email just enough time for administration to devise a plan to discredit me and get me removed.

Page 6 Incident 2 GQ #5 Ms Lee states she was shocked when she received the email and was never made aware I was uncomfortable about the November Interaction but does not deny that I made her aware the first time she hugged me. However, she does admit to the continuation of the pervasive reminders both verbally and written as her way of letting me know she can do whatever she wants and nothing will happen to her because the C-Suite and the agency will protect her.

All other responses by Ms. Lee not responded to are accepted but that is not agreement of the truthfulness of those statements.

Debra Ward Lund:

Page 1 Q1-Q4: Accepted

Page 2 Q5-Q7 Accepted

Page 2 Incident 1 Q1: I also notified Ms. Ward Lund again in writing by email on March 6, 2023 to ensure that the issue would not be "swept under the rug" and escalated the issue to headquarter on March 21, 2023 at 0731 as 15 days had already passed since notifying and 19 days since the event occurred and there is a statutory timeline of 45 days to file the EEO complaint.

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Page 2 Incident 1 Q2: Accepted

Page 3 Incident 1 Q3: This is an admittance by the agency CEO that Ms. Lee is protected I am discriminated against as Ms. Ward Lund upon receiving the email immediately contacts Ms. Lee and states "Given the seriousness of the allegation, I went to see if she would be ok to work the rest of the day. She read the email 'for the first time while I weas in her office'and immediately became extremely upset and tearful. I granted her leave for the remainder of the day." However I am placed on administrative leave for a "serious allegation" and Ms. Lee a Black Native American Female is treated differently than a Caucasian male employee. However, this statement in and of itself is a contradiction of Ms. Ward Lund's statement in her answer to question seven (7) in which she stated "My role as the CEO is unique because I am not the proposing or deciding official. If the matter is grieved, I have to respond, so I cannot be a part of the investigation" so why then was she immediately investigating the issue with Ms. Lee if whe will be the deciding official of any investigation?

Page 3 Incident 1 Q5: It is extremely coincidental that within hours of me elevating my concern to headquarters there is a "serious allegation" and I am immediately escorted off property by security and all my government ID's equipment has to be relinquished [without acknowledgement that I was no longer in custody of the property, ie hand receipt] and all my access was deactivated. Upon return the My hospital ID had been shredded and My PIV card was sent back to HR as if I were terminated. The memorandum placing me on administrative leave only states administrative review and to this day I have not been informed of what that entails or the alleged serious allegation. I am aware of administration tampering with witnesses and telling them to sign statements that they did not make and intimidating them. Specifically Jason White and Megan Wohr is the information I was given.

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Page 3 Incident 1 Q6: If the allegation was not serious why can I not be in my position of record if I can return to work as supported by most clinic staff including the providers as they requested the same in the medical staff meeting.

Page 3 Incident 1 Q7: Please see response to question three (3) of incident 1. Again to reiterate if she is suppose to remain unbiased and not involved in investigations then why did she talk to Ms Lee regarding the serious allegation against her but not question me or even provide information to what the alleged allegation against me is. This answer in and of itself shows the differential treatment of myself from Ms. Lee by Ms. Ward Lund's own statements in this affidavit.

Why is the alleged allegation against me that was so serious being investigated by Mr. Jason White and not by a third party neutral investigator like the allegations against Ms. Lee. I am also aware of other allegations that have been submitted to administration being investigated by third parties but suspiciously the alleged allegation against me is being investigated internally by the rater of my PMAP and the person that against HHS policy the Step 1 for my grievance who already shows bias against me?

I, Kevin Turnage, Aggrieved, have elected the following for the affidavit of:

1. **Candace Lee– Rebuttal provided --- Circle one:** **YES** **NO**
2. **Debra Ward Lund - Rebuttal provided --- Circle one:** **YES** **NO**

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I declare under penalty of perjury that my statement is true, correct, and complete to the best of my knowledge, information, and belief. I understand that the information given is not to be considered confidential and that it may be shown to the interested parties.

Ken Dean Turnage 4/12/23

Signature of Aggrieved Date

**********NOTHING BELOW THIS LINE**********

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